

COMPLAINT NO. 1061-19-0239

IN THE MATTER OF

NICHOLAS JEWELL

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**BEFORE THE TEXAS BEHAVIORAL
HEALTH EXECUTIVE COUNCIL**

**THE TEXAS STATE BOARD
OF EXAMINERS OF
PROFESSIONAL COUNSELORS**

AGREED ORDER

Pursuant to the authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **NICHOLAS JEWELL** ("Respondent") and which constitutes a full settlement and compromise of the complaint(s) currently pending against Respondent before the Council in the above-referenced and numbered matter(s).

FINDINGS OF FACT

1. Respondent is licensed as a professional counselor (#71877) in the State of Texas and is therefore subject to the jurisdiction of the Council.
2. During or about May 2019, Respondent failed to maintain professional boundaries with an older teenage foster youth therapeutic client who was facing sudden foster replacement by personally arranging a potential new foster placement, allowing the teen to spend some nights in his home, and by personally providing out-of-state travel for the teen.

CONCLUSIONS OF LAW

1. Respondent voluntarily received a license from the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.
2. Violation of the Council's Rules is unprofessional conduct and constitutes grounds for the imposition of sanctions under §§ 503.401, 507.301, and 507.351 of the Texas Occupations Code.
3. Based on the above Findings of Fact, the Council finds that Respondent violated Council Rules 22 Tex. Admin. Code §§ 681.41(l); 681.41(m)(1-2, 6).
4. This Agreed Order is a Settlement Agreement under the Texas Rules of Evidence and is not admissible for the purposes of civil litigation. By entering into this Agreed Order,

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Respondent does not admit the foregoing Findings of Fact or Conclusions of Law, but agrees to resolve this matter to avoid the expense and uncertainty of further proceedings.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

1. Respondent's license is hereby REPRIMANDED.
2. Continuing Education. Respondent is required to complete and send proof of completion of twelve (12) hours continuing education in the area of boundaries within six (6) months of the ratification of this order. This continuing education is in addition to the education necessary to maintain licensure, and Respondent is responsible for any costs associated with the required continuing education.
3. Administrative Penalty. Respondent is assessed and shall pay, within thirty (30) days of the date this order is ratified, an administrative penalty in the total amount of \$1,500.00; of which \$1,000.00 represents administrative costs and \$500.00 represents administrative penalty.

WARNING

RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

WAIVERS

On the underlying investigative file, Respondent has waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL, OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER

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REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

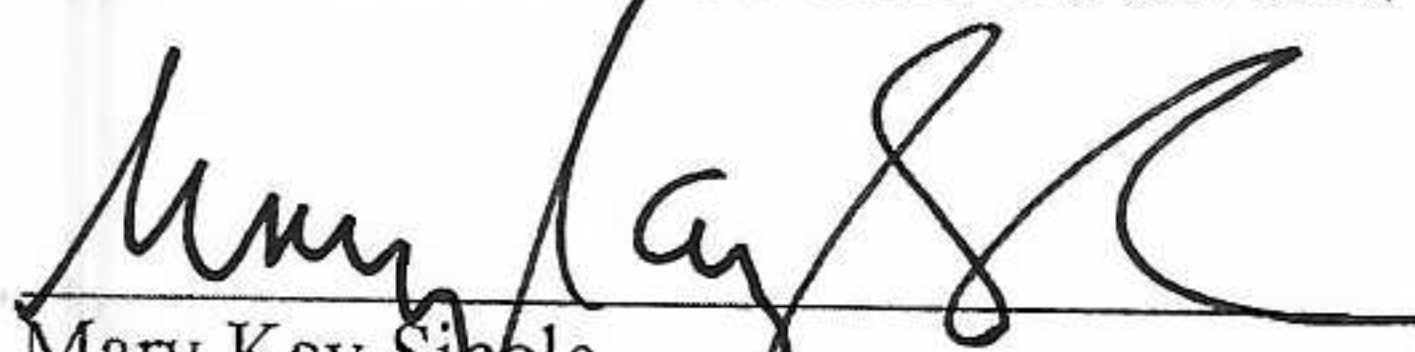
FOR THE RESPONDENT:



Vicky Trompler
Texas Bar No. 00791818
Attorney for Respondent
Naman, Howell, Smith & Lee, PLLC
P.O. Box 1470
Waco, Texas 76703

DATE SIGNED: 08/18/2021

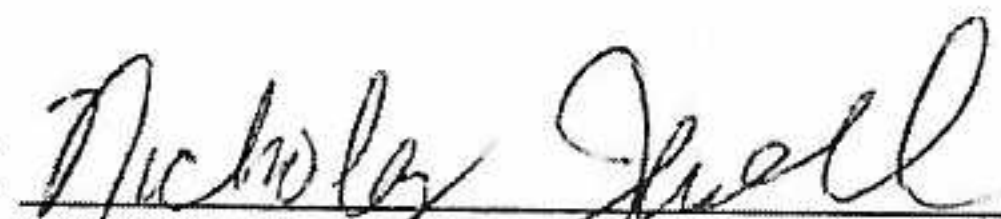
FOR THE STAFF OF THE COUNCIL:



Mary Kay Sicola
Texas Bar No. 18339800
Staff Attorney
Texas Behavioral Health Executive Council
333 Guadalupe, Ste. 3-900
Austin, Texas 78701

DATE SIGNED: 8/18/2021

AGREED:


Nicholas Jewell (#71877)

DATE SIGNED: 8-18-2021

APPROVED, RATIFIED, AND ENTERED THIS 18th DAY OF August, 2021.



Darrel Spinks
Executive Director
Texas Behavioral Health Executive Council